

Tentative Rulings for Department 501

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Tentative Ruling

Re: **Specialty Capital, LLC v. Lorona**
Superior Court Case No. 24CECG00735

Hearing Date: August 4, 2026 (Dept. 501)

Motion: By Plaintiff to Enforce Settlement

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant and sign the proposed judgment.

Explanation:

"Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement...." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, internal citations omitted.) As with law and motion matters generally, the court may receive evidence in determining motions under section 664.6. (*Pajaro Valley Water Management Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1107; see also Cal. Rule of Court, rule 3.1306(a); *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.)

Plaintiff's counsel's declaration attaches the subject fully executed settlement agreement which provides that the court retains enforcement jurisdiction pursuant to section 664.6 and sets forth the payment schedule. (See Friedman Decl., Exh. A.) Defendant failed to make all payments in accordance with the payment schedule and is in breach of the settlement agreement. As of the filing of the motion to enforce, there remained a balance due of \$39,904.58. The motion is unopposed, and thus plaintiff's evidence is uncontroverted. Therefore, the motion is granted. Including attorney fees and costs, the total judgment to be entered is \$40,964.58.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/03/26 .
(Judge's initials) (Date)